

SENATE No. 1213

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to improving sexual violence survivor protections.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/20/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/20/2025</i>

SENATE No. 1213

By Mr. Moore, a petition (accompanied by bill, Senate, No. 1213) of Michael O. Moore, James B. Eldridge and James K. Hawkins for legislation to establish a bill of rights for survivors of sexual assault and related purposes. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1078 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to improving sexual violence survivor protections.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 97B1/2 of chapter 41 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out section (b)(2) and replacing it with:-

3 (2) Submit new sexual assault evidence kits to the crime laboratory within the department
4 of the state police or the police department of a municipality that operates a crime laboratory and
5 has a population of more than 150,000, in the case of a sexual assault alleged to have taken place
6 in that municipality, within 7 business days of taking possession. A sexual violence
7 survivor/victim who has not yet filed a report with law enforcement may elect their sexual
8 assault evidence kit to be tested. Alternatively, a survivor/victim may elect their kit to be safely
9 stored by law enforcement in a manner that preserves evidence for the duration of the statute of
10 limitations for all sexual assault and rape cases.

SECTION 2. Section 97B1/2 of chapter 41 of the General Laws, as so appearing, is hereby amended by adding subsection (e):-

(e) A survivor of sexual assault has the right not to have the results of the rape kit used to prosecute the survivor/victim. Law enforcement agencies and their agents shall use survivor/victim DNA samples or profiles only for purposes directly related to the incident being investigated. No law enforcement agency or agent thereof may compare any of these survivor/victim samples or profiles with DNA samples or profiles that do not relate to the incident being investigated. No law enforcement agency or agent thereof may include any of these survivor/victim DNA profiles in any database that allows these samples to be compared to or matched with profiles derived from DNA evidence obtained from crime scenes.